



Bill Number: H.B. 2035

Werner ADD COW Floor Amendment

Reference to: Senate Engrossed House Bill

Amendment drafted by: Leg Council

FLOOR AMENDMENT EXPLANATION

- Adds an adopted family member of a child to the definition of *extended family member*.

ADDITIONAL COW
WERNER FLOOR AMENDMENT
SENATE AMENDMENT TO H.B. 2035
(Reference to Senate engrossed House bill)

Amendment instruction key:
[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

- 1 The bill as proposed to be amended is reprinted as follows:
2 Section 1. Section 8-501, Arizona Revised Statutes, is amended to read:
3 8-501. Definitions
4 A. In this article, unless the context otherwise requires:
5 1. "Child developmental certified home" means a regular foster home
6 that is licensed pursuant to section 8-509 and that is certified by the
7 department of economic security pursuant to section 36-593.01.
8 2. "Child welfare agency" or "agency":
9 (a) Means:
10 (i) Any agency or institution that is maintained by a person, firm,
11 corporation, association or organization to receive children for care and
12 maintenance or for ~~twenty-four hour~~ TWENTY-FOUR-HOUR social, emotional or
13 educational supervised care or who have been adjudicated as a delinquent or
14 dependent child.
15 (ii) Any institution that provides care for unmarried mothers and their
16 children.
17 (iii) Any agency that is maintained by this state, a political
18 subdivision of this state or a person, firm, corporation, association or
19 organization to place children or unmarried mothers in a foster home.
20 (b) Does not include ~~state operated~~ STATE-OPERATED institutions or
21 facilities, detention facilities for children established by law, health care
22 institutions that are licensed by the department of health services pursuant
23 to title 36, chapter 4 or private agencies that exclusively provide children
24 with social enrichment or recreational opportunities and that do not use
25 restrictive behavior management techniques.
26 3. "Division" or "department" means the department of child safety.

1 4. "EXTENDED FAMILY MEMBER" MEANS AN ADULT PERSON WHO HAS A CONNECTION
2 TO A CHILD BY MARRIAGE TO A BIOLOGICAL FAMILY MEMBER [OR ADOPTED FAMILY
3 MEMBER] OF THE CHILD.
4 ~~4.~~ 5. "Former dependent child" means a person who was previously
5 adjudicated a dependent child in a dependency proceeding that has been
6 dismissed by order of the juvenile court.
7 ~~5.~~ 6. "Foster child" means a child placed in a foster home or child
8 welfare agency.
9 ~~6.~~ 7. "Foster home" means a home that is maintained by any individual
10 or individuals having the care or control of minor children, other than those
11 related to each other by blood or marriage, or related to such individuals, or
12 who are legal wards of such individuals.
13 ~~7.~~ 8. "Foster parent" means any individual or individuals maintaining
14 a foster home.
15 ~~8.~~ 9. "Group foster home" means a licensed regular or special foster
16 home that is suitable for placement of more than five minor children but not
17 more than ten minor children.
18 ~~9.~~ 10. "Out-of-home placement" means the placing of a child in the
19 custody of an individual or agency other than with the child's parent or legal
20 guardian and includes placement in temporary custody pursuant to section
21 8-821, voluntary placement pursuant to section 8-806 or placement due to
22 dependency actions.
23 ~~10.~~ 11. "Parent" means the natural or adoptive mother or father of a
24 child.
25 ~~11.~~ 12. "Reason for leaving care" means one of the following:
26 (a) Reunification with a parent or primary caretaker.
27 (b) Living with another relative.
28 (c) Adoption by a relative.
29 (d) Adoption by a foster parent.
30 (e) Adoption by another person.
31 (f) Age of majority.
32 (g) Guardianship by a relative.
33 (h) Guardianship by another person.
34 (i) Transfer to another agency.
35 (j) Runaway.
36 (k) Death.
37 ~~12.~~ 13. "Receiving foster home" means a licensed foster home that is
38 suitable for immediate placement of children when taken into custody or
39 pending medical examination and court disposition.
40 ~~13.~~ 14. "Regular foster home" means a licensed foster home that is
41 suitable for placement of not more than five minor children.
42 ~~14.~~ 15. "Relative" means a grandparent, great-grandparent, brother or
43 sister of whole or half blood, aunt, uncle or first cousin.
44 ~~15.~~ 16. "Restrictive behavior management" means an intervention or
45 procedure that attempts to guide, redirect, modify or manage behavior through
46 the use of any of the following:

1 (a) Physical force to cause a child to comply with a directive.
2 Physical force does not include physical escort. For the purposes of this
3 subdivision, "physical escort" means temporarily touching or holding a child's
4 hand, wrist, arm, shoulder or back to induce the child to walk to a safe
5 location.

6 (b) A device, action or medication ~~to restrict~~ THAT RESTRICTS the
7 movement or normal function of a child in order to control or change the
8 child's behavior and that includes:

9 (i) A chemical restraint. For the purposes of this item, "chemical
10 restraint" means the use of any psychoactive medication as a restraint to
11 control the child's behavior or to restrict the child's freedom of movement
12 ~~and~~ that is not a standard treatment for the child's medical or psychiatric
13 condition.

14 (ii) A mechanical restraint. For the purposes of this item,
15 "mechanical restraint" means the use of any physical device to limit a child's
16 movement and to prevent the child from causing harm to self or to
17 others. Mechanical restraint does not include devices such as orthopedically
18 prescribed devices, surgical dressings or bandages, protective helmets or any
19 other method that involves the physical holding of a child to conduct a
20 routine physical examination or test or to protect the child from falling out
21 of bed or to ~~permit~~ ALLOW the child to participate in activities in order to
22 reduce the risk of physical harm to the child.

23 (iii) A physical restraint. For the purposes of this item, "physical
24 restraint" means applying physical force to reduce or restrict a child's
25 ability to freely move the child's arms, legs or head. Physical restraint
26 does not include temporarily holding a child to ~~permit~~ ALLOW the child to
27 participate in activities of daily living if this holding does not involve the
28 risk of physical harm to the child.

29 (iv) Seclusion. For the purposes of this item, "seclusion" means
30 placing a child against the child's will in a room in which the child is
31 unable to open the door in order to prevent the child from doing harm to self
32 or others.

33 ~~16-~~ 17. "Special foster home" means a licensed foster home that is
34 capable of handling not more than five minor children who require special care
35 for physical, mental or emotional reasons or who have been adjudicated
36 delinquent. Special foster home includes any home handling foster children
37 aged twelve through seventeen.

38 B. A foster home or any classification of foster home defined in
39 subsection A of this section includes a home having the care of persons who
40 are under twenty-one years of age and the cost of whose care is provided
41 pursuant to section 8-521.01.

42 Sec. 2. Section 8-514.03, Arizona Revised Statutes, is amended to read:
43 8-514.03. Kinship foster care; requirements; investigation

44 A. The department shall establish kinship foster care services for a
45 child who has been removed from the child's home and who is in the custody of
46 the department. The program shall ~~promote~~ PRESUME the placement of the child
47 with the child's relative, AN EXTENDED FAMILY MEMBER or a person with a

1 significant relationship with the child for kinship foster care **IS IN THE BEST**
2 **INTEREST OF THE CHILD.**

3 B. A kinship foster care parent applicant who is not a licensed foster
4 care parent shall be at least eighteen years of age. The applicant and each
5 member of the applicant's household who is at least eighteen years of age
6 shall submit a full set of fingerprints to the department of child safety for
7 the purpose of obtaining a state and federal criminal records check pursuant
8 to section 41-1750 and Public Law 92-544. The department of public safety may
9 exchange this fingerprint data with the federal bureau of investigation. The
10 department of child safety shall determine if the applicant is able to meet
11 the child's health and safety needs by conducting one or more home visits and
12 interviewing the applicant. The department of child safety may interview
13 other household members, review the applicant's personal and professional
14 references and conduct department of child safety central registry checks.

15 C. If the department determines that a kinship foster care placement is
16 not in the best interest of the child, the department shall provide written
17 notification to the applicant within fifteen business days. The notice shall
18 include the specific reason ~~for denial~~ **WHY THE DEPARTMENT DETERMINED THE**
19 **PLACEMENT IN KINSHIP FOSTER CARE IS NOT IN THE BEST INTEREST OF THE CHILD**, the
20 applicant's right to appeal and the process for reviewing the decision.

21 D. A kinship foster care parent may be eligible to receive the
22 following financial services for the child:

23 1. Full foster care benefits, including payment if the kinship foster
24 care parent becomes a licensed foster care home or if the kinship foster care
25 parent obtains a restricted license pursuant to section 8-509, subsection C.

26 2. Temporary assistance for needy families cash assistance payments for
27 a child only case and supplemental financial support.

28 E. The department shall establish procedures for child welfare workers
29 to inform kinship foster care families about available financial and
30 nonfinancial services and eligibility requirements and shall assist the
31 families in completing the necessary application.

32 F. If a family declines to apply for financial services, the family
33 shall sign a statement indicating that the family declined services. The
34 statement does not prevent the family from ~~making application~~ **APPLYING FOR**
35 **FINANCIAL SERVICES** in the future. The worker shall provide a copy of the
36 statement to the family.

37 G. The department shall provide nonfinancial services for a kinship
38 foster care parent through existing means or referral. Nonfinancial services
39 may include:

- 40 1. Family assessment.
- 41 2. Case management.
- 42 3. Child day care.
- 43 4. Housing search and relocation.
- 44 5. Parenting skills training.
- 45 6. Supportive intervention and guidance counseling.
- 46 7. Transportation.

1 8. Emergency services.

2 9. Parent aid services.

3 10. Respite services.

4 11. Additional services that the department determines are necessary to
5 meet the needs of the child and family.

6 Sec. 3. Section 8-514.07, Arizona Revised Statutes, is amended to read:

7 8-514.07. Kinship foster care; relative identification and
8 notification; due diligence search

9 A. If a child is taken into temporary custody, as part of the ongoing
10 search, the department shall use due diligence in an initial search to
11 identify and notify adult relatives of the child, **EXTENDED FAMILY MEMBERS** and
12 persons with a significant relationship with the child within thirty days
13 after the child is taken into temporary custody.

14 B. The search to identify adult relatives of the child, **EXTENDED FAMILY**
15 **MEMBERS** or persons with a significant relationship with the child must
16 include:

17 1. An interview with the child's parent.

18 2. An interview with the child.

19 3. Interviews with identified adult relatives **OR EXTENDED FAMILY**
20 **MEMBERS**.

21 4. Interviews with other persons who are likely to have information
22 regarding the location of adult relatives of the child, **EXTENDED FAMILY**
23 **MEMBERS** or persons with a significant relationship with the child.

24 5. A comprehensive search of available records that are likely to help
25 identify and locate a person being sought, including:

26 (a) Employment records.

27 (b) Vehicle registration records.

28 (c) Child support enforcement records.

29 (d) Utility accounts.

30 (e) Previous residential addresses.

31 (f) Law enforcement records.

32 (g) State department of corrections records.

33 6. Thorough inquiries by the court of the parties during case hearings.

34 7. Any other means the department deems likely to identify adult
35 relatives of the child, **EXTENDED FAMILY MEMBERS** or persons with a significant
36 relationship with the child.

37 C. Within thirty days after the child is taken into temporary custody
38 and at each subsequent review and report hearing or permanency planning
39 hearing, the department shall file with the court documentation regarding
40 attempts made pursuant to this section or as otherwise required by the court
41 to identify and notify adult relatives of the child, **EXTENDED FAMILY MEMBERS**
42 and persons with a significant relationship with the child. This
43 documentation shall include a detailed narrative explaining the department's
44 efforts to consider each potential placement and the specific outcome.

1 D. The department shall provide WRITTEN notice to adult relatives of
2 the child, EXTENDED FAMILY MEMBERS and persons with a significant relationship
3 with the child who are identified through the search requirements of this
4 section. The notice shall do the following:

5 1. Specify that the child has been or is being removed from the child's
6 parental custody.

7 2. Explain the options an adult relative of the child, AN EXTENDED
8 FAMILY MEMBER or a person with a significant relationship with the child has
9 to participate in the care or placement of the child.

10 3. Explain that financial assistance and other forms of support are
11 available to adult relatives of the child, EXTENDED FAMILY MEMBERS and persons
12 with a significant relationship with the child with whom the child is placed.

13 4. Describe the process for becoming a licensed foster parent and the
14 additional services and support that are available for children placed in
15 approved foster homes.

16 5. Require an adult relative of the child, AN EXTENDED FAMILY MEMBER or
17 a person with a significant relationship with the child to respond within
18 thirty days after receiving notice that the child has been removed from the
19 home.

20 E. If the child is not placed with an adult relative of the child,
21 EXTENDED FAMILY MEMBER or person with a significant relationship with the
22 child or the child is placed with an adult relative, EXTENDED FAMILY MEMBER or
23 person with a significant relationship with the child who is unable or
24 unwilling to provide permanent placement for the child, the department shall
25 continue to conduct an ongoing search for adult relatives of the child,
26 EXTENDED FAMILY MEMBERS or persons with a significant relationship with the
27 child. The department shall engage in search efforts if ordered by the court,
28 a change in the child's placement occurs or a party shows that the search is
29 in the best interest of the child.

30 F. The department shall file with the court documentation of both of
31 the following:

32 1. The completed due diligence search efforts. This documentation
33 shall include:

34 (a) The names of and relevant information about adult relatives of the
35 child, EXTENDED FAMILY MEMBERS or persons with a significant relationship with
36 the child.

37 (b) The steps taken by the department to locate and contact adult
38 relatives of the child, EXTENDED FAMILY MEMBERS or persons with a significant
39 relationship with the child.

40 (c) The WRITTEN responses received from adult relatives of the child,
41 EXTENDED FAMILY MEMBERS or persons with a significant relationship with the
42 child.

43 (d) The dates of each attempted or completed contact with an adult
44 relative of the child, AN EXTENDED FAMILY MEMBER or a person with a
45 significant relationship with the child.

(e) The reasons why an adult relative of the child, **AN EXTENDED FAMILY MEMBER** or a person with a significant relationship with the child was not considered for temporary or permanent placement of the child.

2. All efforts for placement of the child through an interstate compact agreement pursuant to section 8-548. This documentation shall include:

(a) The names of adult relatives of the child, **EXTENDED FAMILY MEMBERS** or persons with a significant relationship with the child who were considered for an interstate placement.

(b) Any pending placement of the child through an interstate compact agreement.

(c) All potential out-of-state placements outside of an interstate compact agreement and the reasons such placements have not been initiated.

G. If an out-of-state placement option exists and the department has failed to file a request with the receiving state pursuant to the requirements of an interstate compact agreement pursuant to section 8-548, the court shall enter a finding that the department has not made a due diligence search and shall order the department to file a request with the receiving state pursuant to the terms of the interstate compact agreement.

Sec. 4. Section 8-529, Arizona Revised Statutes, is amended to read:

8-529. Children in foster care and kinship foster care; rights

A. A child **WHO IS** in foster care ~~and~~ **OR** kinship foster care has the following rights:

1. To appropriate care and treatment in the least restrictive setting available that can meet the child's needs according to the best judgment of the foster parent, **ADULT RELATIVE OF THE CHILD, EXTENDED FAMILY MEMBER OR PERSON WITH A SIGNIFICANT RELATIONSHIP WITH THE CHILD.**

2. To live in a safe, healthy and comfortable placement where the child can receive reasonable protection from harm and appropriate privacy for personal needs and where the child is treated with respect.

3. To be placed with ~~a~~ **AN ADULT** relative ~~when such placement is in the best interest~~ of the child, **EXTENDED FAMILY MEMBER OR PERSON WITH A SIGNIFICANT RELATIONSHIP WITH THE CHILD UNLESS THE PLACEMENT IS NOT IN THE BEST INTEREST OF THE CHILD.**

4. To be placed with or in close proximity to the child's siblings when possible and to visit and have contact with siblings and family members when ~~it is in the best interest of the child~~ **THE PLACEMENT, VISITATION OR CONTACT DOES NOT POSE A RISK TO THE CHILD'S SAFETY OR THE SAFETY OF THE CHILD'S SIBLINGS.**

5. To know why the child is in foster care and what will happen to the child and to the child's family, including siblings, and case plans.

6. Whenever possible, to be placed with a foster family that can accommodate the child's communication needs.

7. To be disciplined in a manner that is appropriate to the child's level of maturity and not be subjected to physical discipline methods.

- 1 8. To attend community, school, extracurricular and religious services
2 and activities of the child's choice to the extent that it is appropriate for
3 the child, as planned and discussed with the child's placement worker and
4 caseworker and based on caregiver ability if transportation is available
5 through a responsible party.
- 6 9. To go to school and receive an education that fits the child's age
7 and individual needs. If remaining in the child's current school is not in
8 the child's best interest, the child has the right to be enrolled in the least
9 restrictive school available.
- 10 10. To training in personal care, hygiene and grooming.
- 11 11. To clothing that fits comfortably and is adequate to protect the
12 child against natural elements such as rain, snow, wind, cold and sun.
- 13 12. To have personal possessions at home and to acquire additional
14 possessions within reasonable limits, as planned and discussed with the
15 child's foster parent, placement worker and caseworker, and based on caregiver
16 ability.
- 17 13. To personal space, preferably in the child's foster home bedroom
18 for storing clothing and belongings.
- 19 14. To healthy foods in healthy portions that are appropriate for the
20 child's age.
- 21 15. To comply with any approved visitation plan, and to have any
22 restrictions explained to the child in a manner and level of details deemed
23 age appropriate by the foster parent in agreement with the caseworker and
24 documented in the child's record.
- 25 16. If the child is six years of age or older, to receive contact
26 information for the child's caseworker, attorney or advocate and to speak with
27 them in private if necessary.
- 28 17. To be represented by an attorney in all proceedings initiated
29 pursuant to this title.
- 30 18. To participate in ~~age appropriate~~ AGE-APPROPRIATE child's service
31 planning and permanency planning meetings and to be given a copy or summary of
32 each service plan and service plan review. The child may request someone to
33 participate on the child's behalf or to support the child in this
34 participation.
- 35 19. To attend the child's court hearing and speak to the judge.
- 36 20. To have the child's records and personal information kept private
37 and discussed only when it is about the child's care, except THAT the foster
38 parent shall have full access to the records to determine ~~if~~ WHETHER the child
39 will be successful in the home. During the foster placement, if the foster
40 parent requests to view the record on experiencing problems with the child's
41 adjustment, the full record shall be made available for viewing by the foster
42 parent.
- 43 21. To receive medical, dental, vision and mental health services and
44 to be informed about diagnoses and treatment options as is developmentally
45 appropriate.
- 46 22. To be free of unnecessary or excessive medication.

1 23. To receive emotional, mental health or chemical dependency
2 treatment separately from adults who are receiving services, as planned and
3 discussed with the child's placement worker and caseworker, as is financially
4 reasonable for the foster parent.

5 24. To report a violation of personal rights specified in this section
6 without fear of punishment, interference, coercion or retaliation, except that
7 an appropriate level of punishment may be applied if the child is proven to
8 have maliciously or wrongfully accused the foster parent.

9 25. To be informed in writing of the name, address, telephone number
10 and purpose of the Arizona protection and advocacy system for disability
11 assistance.

12 26. To understand and have a copy of the rights listed in this section.

13 27. TO BE UPDATED AT LEAST EVERY THIRTY DAYS AS TO THE STATUS OF THE
14 DEPARTMENT'S EFFORTS TO PLACE THE CHILD IN KINSHIP FOSTER CARE OR IN A CARE
15 SETTING WITH THE CHILD'S SIBLINGS.

16 B. A child WHO IS in foster care or kinship foster care AND who is at
17 least fourteen years of age has the following rights:

18 1. To attend preparation for adult living classes and activities as
19 appropriate to the child's case plan, as is financially reasonable for the
20 foster parent.

21 2. To a transition plan that includes career planning and assistance
22 with enrolling in an educational or vocational job training program.

23 3. To be informed of educational opportunities, including information
24 regarding assistance and funding for postsecondary and vocational education.

25 4. To assistance in obtaining an independent residency when the child
26 is too old to remain in foster care from the child's caseworker, attorney or
27 advocate.

28 5. To request a court hearing for a court to determine ~~if~~ WHETHER the
29 child has the capacity to consent to medical care that is directly related to
30 an illness, disease, deformity or other physical malady.

31 6. To receive help with obtaining a driver license, social security
32 number, birth certificate or state identification card and credit reports with
33 assistance in interpreting the reports and resolving inaccuracies in the
34 report. The foster parent shall have discretion to determine ~~if~~ WHETHER the
35 child is responsible and mature enough to become a licensed driver.

36 7. To receive necessary personal information within thirty days after
37 leaving foster care, including the child's birth certificate, immunization
38 records and information contained in the child's education portfolio and
39 health passport.

40 8. To participate in or reenter extended foster care when the child is
41 at least eighteen and under twenty-one years of age pursuant to section
42 8-521.02.

43 C. The department shall provide information regarding a child's rights
44 pursuant to this section and assistance in understanding and enforcing these
45 rights to each child who enters foster care or kinship foster care or when
46 there is a change in the child's foster care plan. The information shall also
47 include the telephone number and email address of the department, the child's
48 assigned case manager, the department's office of the ombudsman and the

1 ombudsman-citizens aide. A copy of these rights shall be posted in a
2 conspicuous place in all foster ~~care~~ HOMES and group FOSTER homes.

3 D. If a child who is in foster care or kinship foster care believes
4 that the child's rights under this section have been violated, the child or
5 the child's representative may:

6 1. File a complaint with the department, the department's office of the
7 ombudsman or the ombudsman-citizens aide pursuant to section 41-1376. A formal
8 grievance may be initiated with the ombudsman at any time.

9 2. Notify the juvenile court in the child's ongoing dependency,
10 severance or adoption proceeding, either orally or in writing, that the
11 child's rights are being violated and request appropriate equitable relief.
12 The court shall act on the notification as necessary within ~~its~~ THE COURT'S
13 discretion to promote the best interest of the child.

14 E. The rights provided in this section do not establish an independent
15 cause of action.

16 Sec. 5. Section 8-801, Arizona Revised Statutes, is amended to read:

17 8-801. Definitions

18 In this article and articles 9, 10, 11, 12, 13 and 14 of this chapter,
19 unless the context otherwise requires:

20 1. "Child safety services" means a specialized child welfare program
21 that is administered by the department as provided in this chapter and that
22 investigates allegations of and seeks to prevent, intervene in and treat abuse
23 and neglect, to promote the well-being of the child in a permanent home and to
24 coordinate services to strengthen the family.

25 2. "Child safety worker" or "worker" means a person who has been
26 selected by and trained under the requirements prescribed by the department
27 and who assists in carrying out ~~the provisions of~~ this article.

28 3. "DCS information":

29 (a) Includes all information the department gathers during the course
30 of an investigation conducted under this chapter from the time a file is
31 opened and until it is closed.

32 (b) Does not include information that is contained in child welfare
33 agency licensing records.

34 4. "EXTENDED FAMILY MEMBER" HAS THE SAME MEANING PRESCRIBED IN SECTION
35 8-501.

36 ~~4.~~ 5. "In-home intervention" means a program of services provided
37 pursuant to article 14 of this chapter while the child is still in the custody
38 of the parent, guardian or custodian.

39 ~~5.~~ 6. "Relative" has the same meaning prescribed in section 8-501.

40 Sec. 6. Section 8-824, Arizona Revised Statutes, is amended to read:

41 8-824. Preliminary protective hearing; parents' rights; probable
42 cause; placement of child

43 A. The court shall hold a preliminary protective hearing to review the
44 taking into temporary custody of a child pursuant to section 8-821 not fewer
45 than five days nor more than seven days after the child is taken into custody,
46 excluding Saturdays, Sundays and holidays. If clearly necessary to prevent
47 abuse or neglect, to preserve the rights of a party or for other good cause
48 shown, the court may grant one continuance that does not exceed five days.

1 B. The following persons shall be present at the preliminary protective
2 hearing:
3 1. The child's parents or guardian, unless they cannot be located or
4 they fail to appear in response to the notice.
5 2. Counsel for the parents if one has been requested or retained.
6 3. The child's guardian ad litem or attorney.
7 4. The child safety worker and additional representatives of the
8 department if requested by the department.
9 5. Counsel for the child safety worker.
10 C. If the court finds that it is in the best interests of the child,
11 the court may allow the following to be present at the preliminary protective
12 hearing:
13 1. The child.
14 2. Any relative or other interested person with whom the child is or
15 might be placed as described in section 8-845, subsection A.
16 3. Witnesses called by the parties.
17 4. An advocate or interested person as requested by the parent or
18 guardian.
19 5. Other persons who have knowledge of or an interest in the welfare of
20 the child.
21 D. At the hearing, the court shall advise the parent or guardian of the
22 following rights:
23 1. The right to counsel, including appointed counsel if the parent or
24 guardian is indigent.
25 2. The right to cross-examine all witnesses who are called to testify
26 against the parent or guardian.
27 3. The right to trial by court on the allegations in the petition.
28 4. The right to use the process of the court to compel the attendance
29 of witnesses.
30 E. At the hearing, the court:
31 1. Shall receive a report of any agreement reached pursuant to section
32 8-823, subsection D. The report may be made orally.
33 2. Shall provide an opportunity for the child's parent or guardian, if
34 present, and any other person who has relevant knowledge, to provide relevant
35 testimony.
36 3. May limit testimony and evidence that is beyond the scope of the
37 removal of the child, the child's need for continued protection, placement,
38 visitation and services to be provided to the child and family.
39 4. May take into consideration as a mitigating factor the participation
40 of the parent or guardian in the healthy families program established by
41 section 8-481.
42 5. Shall take into consideration as a mitigating factor the
43 availability of reasonable services to the parent or guardian to prevent or
44 eliminate the need for removal of the child and the effort of the parent or
45 guardian to obtain and participate in these services.

6. Shall inform the child's parent or guardian that the hearing may result in further proceedings to terminate parental rights.

7. Shall order the parent or guardian to provide the court with the names, the type of relationship and all available information necessary to locate persons who are related to the child or who have a significant relationship with the child. If there is not sufficient information available to locate a relative or person with a significant relationship with the child, the parent or guardian shall inform the court of this fact. The court shall further order the parent or guardian to inform the department immediately if the parent or guardian becomes aware of information related to the existence or location of a relative or person with a significant relationship ~~to~~ WITH the child.

8. Shall inform the parent that substantially neglecting or wilfully refusing to remedy the circumstances that cause the child to be in an out-of-home placement, including refusing to participate in reunification services, is grounds for termination of parental rights to a child.

9. Shall give paramount consideration to the health and safety of the child.

10. Shall determine whether the department is attempting to identify and assess placement of the child with a ~~grandparent~~ RELATIVE OF THE CHILD or ~~another member of the child's~~ AN extended family MEMBER, including a person who has a significant relationship with the child.

11. Shall inform a foster parent, a preadoptive parent, A RELATIVE OF THE CHILD or ~~a member of the child's~~ AN extended family MEMBER with whom the department has placed the child of the right to be heard in any proceeding to be held with respect to the child.

12. SHALL PRESUME PLACEMENT OF THE CHILD WITH AN ADULT RELATIVE OF THE CHILD, AN EXTENDED FAMILY MEMBER OR A PERSON WHO HAS A SIGNIFICANT RELATIONSHIP WITH THE CHILD IS IN THE BEST INTEREST OF THE CHILD.

13. SHALL MAKE WRITTEN FINDINGS OF FACT AND CONCLUSIONS OF LAW ON THE RECORD.

F. The petitioner has the burden of presenting evidence as to whether there is probable cause to believe that continued temporary custody is clearly necessary to prevent abuse or neglect pending the hearing on the dependency petition.

G. The department must make reasonable efforts to place a child with siblings and, if that is not possible, to maintain frequent visitation or other ongoing contact between all siblings.

H. If the child is in the temporary custody of the department, the department shall submit, not later than the day before the hearing, a written report to the court and the parties that states:

1. The reasons the child was removed from the parent's or guardian's custody.

2. Any services that have been provided to the child or the child's parent or guardian to prevent removal.

3. The need, if any, for continued temporary custody.

1 4. The types of service needed to facilitate the return of the child to
2 the custody of the child's parents or guardian.

3 5. If the child is not placed with a ~~grandparent~~ **RELATIVE OF THE CHILD,**
4 **AN EXTENDED FAMILY MEMBER OR ANOTHER INTERESTED PARTY**, whether the child has
5 any relatives, **EXTENDED FAMILY MEMBERS** or other interested parties as
6 described in section 8-845, subsection A who may be able and willing to take
7 temporary custody.

8 6. Any services that are requested by the parent or guardian but that
9 are not provided and the reasons the services were not provided.

10 7. What efforts the department has made to place siblings together, and
11 if they are not placed together, the specific reasons why this did not occur.

12 8. If the placement of siblings together was not possible for all or
13 any of the siblings, efforts the department has made to facilitate
14 communications among siblings and a proposal for frequent visitation or
15 contact pursuant to subsection G of this section. If frequent visitation or
16 contact with siblings is not recommended, the department shall state the
17 reasons why this would be contrary to the child's or a sibling's safety or
18 well-being.

19 9. A proposal for visitation with the child's parents or guardian and
20 the results of any visitation that has occurred since the child was
21 removed. The requirements of this paragraph do not apply to a specific parent
22 or guardian if there is a court order relating to a criminal case that
23 prohibits that parent or guardian from contact with the child. Before the
24 department allows visitation it must first determine that there are no court
25 orders relating to any superior court criminal case that prohibit the parent
26 or guardian from contact with the child.

27 10. A proposed case plan for services to the family.

28 11. The department's efforts to identify, notify and assess adult
29 relatives of the child, **EXTENDED FAMILY MEMBERS** and persons with a significant
30 relationship with the child pursuant to section 8-514.07.

31 I. The parent or guardian shall state whether the parent or guardian
32 admits or denies the allegations in the petition filed pursuant to section
33 8-841. If the parent or guardian admits or does not contest the allegations
34 in the petition, the court shall determine that the parent or guardian
35 understands the rights described in subsection D of this section and that the
36 parent or guardian knowingly, intelligently and voluntarily waives these
37 rights.

38 J. At the hearing, if the child is not returned to the parent or
39 guardian, the court shall:

40 1. Enter orders regarding the placement of the child pending the
41 determination of the dependency petition and visitation, if any.

42 2. If a relative is identified as a possible placement for the child,
43 notify the relative of the right to be heard in any proceeding to be held with
44 respect to the child.

45 3. Determine **WHETHER** the tasks and services set forth in the case plan
46 are reasonable and necessary to carry out the case plan.

1 Sec. 7. Section 8-842, Arizona Revised Statutes, is amended to read:

2 8-842. Initial dependency hearing; deadlines

3 A. Except as provided in section 8-826, the court shall set the initial
4 dependency hearing within twenty-one days after the petition is filed. If
5 service by publication is required, the court may set an initial dependency
6 hearing within a time period to allow for publication pursuant to the rules of
7 procedure for the juvenile court.

8 B. At the initial dependency hearing, the court shall:

9 1. Determine ~~if~~ **WHETHER** the parent or guardian is providing the court
10 and the department with the names, the type of relationship and all available
11 information necessary to locate persons who are related to the child or who
12 have a significant relationship with the child.

13 2. Determine ~~that~~ **WHETHER** the department is conducting a due diligence
14 search pursuant to section 8-514.07 and attempting to identify and assess
15 placement of the child with ~~a grandparent or another member of the child's~~ **AN**
16 **ADULT RELATIVE OF THE CHILD, AN** extended family ~~including~~ **MEMBER OR** a person
17 who has a significant relationship with the child. **THE COURT SHALL ORDER THAT**
18 **THE CHILD BE PLACED WITH AN ADULT RELATIVE OF THE CHILD, AN EXTENDED FAMILY**
19 **MEMBER OR A PERSON WHO HAS A SIGNIFICANT RELATIONSHIP WITH THE CHILD IF SUCH A**
20 **PLACEMENT IS AVAILABLE AND IN THE BEST INTEREST OF THE CHILD.**

21 3. If the child has siblings, determine ~~that~~ **WHETHER** the department is
22 attempting to identify and assess placement of the child with the child's
23 siblings if this is possible and is in the child's best interests.

24 4. **MAKE WRITTEN FINDINGS OF FACT AND CONCLUSIONS OF LAW ON THE RECORD.**

25 C. **WITHIN FORTY-EIGHT HOURS AFTER THE INITIAL DEPENDENCY HEARING, THE**
26 **COURT SHALL ORDER THAT THE CHILD BE PLACED WITH AN ADULT RELATIVE OF THE**
27 **CHILD, AN EXTENDED FAMILY MEMBER OR A PERSON WHO HAS A SIGNIFICANT**
28 **RELATIONSHIP WITH THE CHILD IF SUCH A PLACEMENT IS AVAILABLE AND IN THE BEST**
29 **INTEREST OF THE CHILD.**

30 ~~E.~~ **D.** Unless the court has ordered in-home intervention, the
31 dependency adjudication hearing shall be completed within ninety days after
32 service of the dependency petition.

33 Enroll and engross to conform

34 Amend title to conform

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